

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No:

-----X
TERRIC LETANG,

Plaintiff,

-against-

CITY OF NEW YORK, LT. KHALIL A. BINSAFAR,
and POLICE OFFICERS JOHN DOE 1-3,
BADGE NUMBERS UNKNOWN,

Defendants.
-----X

SUMMONS

Plaintiff designates
NEW YORK COUNTY
as Place of Trial

Basis of Venue:
Place of Occurrence

2660 8th Avenue
New York, NY 10030

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
March 1, 2024

Jaime Santana, Jr.

By: JAIME SANTANA, JR.
SANTANA LAW FIRM, P.C.
Attorney for Plaintiff
TERRIC LETANG
590 Madison Avenue, 21st Floor
New York, New York 10022
(212) 448 0055

Defendant's address:
CITY OF NEW YORK
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
TERRIC LETANG,

Plaintiff,

-against-

CITY OF NEW YORK, LT. KHALIL A. BINSAFAR,
and POLICE OFFICERS JOHN DOE 1-3,
BADGE NUMBERS UNKNOWN,

Defendants.

-----X

Index No:

**VERIFIED
COMPLAINT**

Plaintiff, TERRIC LETANG, by and through his attorney JAIME SANTANA, JR.
complaining of the Defendants CITY OF NEW YORK, LT. KHALIL A. BINSAFAR,
and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, respectfully
alleges as follows:

1. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK was and still
is a municipal corporation duly organized and existing under and by virtue of the General
Municipal Law of the State of New York.

2. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK, its agents
servants, and employees operated, maintained, and controlled the New York City Police
Department, including all the police officers thereof.

3. That at all times hereinafter mentioned, Defendants LT. KHALIL A. BINSAFAR,

4. and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN acted
within the scope of their employment for Defendant CITY OF NEW YORK assigned to Police
Service Area 6.

5. That at all times hereinafter mentioned, Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN were acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of their office as police officers for said city and state.

6. On September 3, 2022, in the afternoon Plaintiff, TERRIC LETANG was lawfully at 2660 8th Avenue, New York, NY.

7. That, at the aforementioned date, time, and place, the Plaintiff, TERRIC LETANG, was accosted and searched by Defendants, LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN

8. After the search was completed, Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, took the Plaintiff into custody, despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

9. That on September 3, 2022, at approximately 3:50 P.M., Defendant CITY OF NEW YORK by and through its employees including Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, without legal process, forcibly, wrongfully and unlawfully arrested Plaintiff TERRIC LETANG.

10. Plaintiff TERRIC LETANG, was then transported to the Police Service Area 6 where his arrest was processed. The Plaintiff, TERRIC LETANG, was held at the Police Service Area 6 for a significant period of time. Plaintiff, TERRIC LETANG was then taken to New York Central

Booking for arraignment where he was further held for an additional significant period of time before being sent to Riker's Island. Plaintiff was deprived of his liberty for a total of approximately 16 months.

11. That on September 3, 2022, Defendants CITY OF NEW YORK by and through its employees including Defendants, LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, initiated criminal proceedings including, but not limited to, an arrest, process, detention at Police Service Area 6 detention at Central Booking in New York County and Court appearance despite Defendants' knowledge that they lacked probable cause to do so.

12. That on or about December 5, 2022, the case under Docket No.: CR- 023253-22NY against Plaintiff was dismissed and sealed.

13. That prior to, and within 90 days from the date of injury, Plaintiff duly presented, served, and filed a Notice of Claim, in writing, upon the Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

14. Upon information and belief, the Municipal 50H Hearing regarding the above claim was scheduled for November 30, 2023, however, the Defendant has never confirmed and has refused to engage in rescheduling the 50H Hearing.

15. This action is commenced within one year and ninety days after the cause of action arose.

16. This action falls within one or more of the exceptions set forth in CPLR §1602.

AS AND FOR A FIRST CAUSE OF ACTION FOR
FALSE ARREST UNDER 42 U.S.C. § 1983

17. Plaintiff TERRIC LETANG repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

18. That at the aforementioned time and place, Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN placed Plaintiff TERRIC LETANG under arrest despite Defendants' knowledge that they lacked probable cause to do so.

19. That Plaintiff TERRIC LETANG has not committed any offense and Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

20. That Defendants, LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN were aware that probable cause did not exist for the arrest and detention of Plaintiff, TERRIC LETANG, and that said arrest and detention were illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff TERRIC LETANG and such actions were committed in bad faith.

21. That, in all of the wrongful acts above alleged, Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff TERRIC LETANG, and such actions were committed in bad faith.

22. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, all committed under color of his authority as a police officer, and while acting in that capacity, Plaintiff TERRIC LETANG was deprived of the rights and immunities secured to him under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

23. As a further result of the above-described acts, Plaintiff TERRIC LETANG was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983**

24. Plaintiff TERRIC LETANG repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

25. That Plaintiff TERRIC LETANG was falsely imprisoned on September 3, 2022, for approximately two months by the Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

26. That Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, intended to confine Plaintiff TERRIC LETANG and Plaintiff TERRIC LETANG was conscious of the confinement, and Plaintiff TERRIC LETANG did not consent to the confinement.

27. That Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff TERRIC LETANG and damaging Plaintiff TERRIC LETANG in his reputation and depriving him of his liberty.

28. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendants, LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff TERRIC LETANG suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

29. Plaintiff, TERRIC LETANG repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

30. That Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, misrepresented and falsified evidence before the District Attorney.

31. That Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, did not make a complete and full statement of facts to the District Attorney.

32. That LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, withheld exculpatory evidence from the District Attorney.

33. That Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, were directly and actively involved in the initiation of criminal proceedings against Plaintiff TERRIC LETANG.

34. That Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN lacked probable cause to initiate criminal proceedings against Plaintiff TERRIC LETANG.

35. That Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, acted with malice in initiating criminal proceedings against Plaintiff, TERRIC LETANG.

36. That Defendants POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN were directly and actively involved in the continuation of criminal proceedings against Plaintiff TERRIC LETANG.

37. That Defendants POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN lacked probable cause to continue criminal proceedings against Plaintiff TERRIC LETANG.

38. That Defendants POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, acted with malice in continuing criminal proceedings Plaintiff TERRIC

LETANG.

39. That Defendants POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, misrepresented and falsified evidence throughout all phases of the criminal proceeding.

40. That, notwithstanding the perjurious and fraudulent conduct of Defendants POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN the criminal proceedings were terminated in Plaintiff TERRIC LETANG's favor.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

41. Plaintiff TERRIC LETANG repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

42. Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

43. That the aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

44. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff TERRIC LETANG.

45. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff TERRIC LETANG as alleged herein.

46. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff TERRIC LETANG as alleged herein.

47. Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, while acting under the color of state law, was directly and actively involved in violating Plaintiff TERRIC LETANG's constitutional rights.

48. All of the foregoing acts by Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, deprived Plaintiff TERRIC LETANG of federally protected rights including, but not limited to, the right:

- A. Not to be deprived of liberty without due process;
- B. To be free from seizure and arrest not based on probable cause;
- C. To be free from unlawful search;
- D. To be free from malicious abuse of process;
- E. Not to have cruel and unusual punishment imposed upon him;
- F. To receive equal protection under the law.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
FAILURE TO INTERVENE UNDER 42 U.S.C. § 1983**

49. Plaintiff TERRIC LETANG repeats, reiterates and realleges each and every allegation contained in this complaint.

50. Each and every individual Defendant Police Officer had an affirmative duty to intervene

on Plaintiff TERRIC LETANG's behalf to prevent the violation of his constitutional rights and failed to intervene despite having had a realistic opportunity to do so.

51. As a result of the aforementioned conduct of the individual Defendants, Plaintiff TERRIC LETANG's constitutional rights were violated and he was subjected to excessive force and sustained physical injuries.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
FALSE ARREST UNDER NEW YORK STATE LAW**

52. Plaintiff TERRIC LETANG repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

53. Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, arrested Plaintiff TERRIC LETANG in the absence of probable cause and without a warrant.

54. As a result of the aforesaid conduct by Defendants, LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, Plaintiff TERRIC LETANG was subjected to an illegal, improper and false arrest by the Defendants and taken into custody and cause to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings.

55. The aforesaid actions by LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, constituted a deprivation of Plaintiff TERRIC LETANG's rights.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
FALSE IMPRISONMENT UNDER NEW YORK STATE LAW**

56. Plaintiff TERRIC LETANG repeats, reiterates, and realleges each and every paragraph of this complaint and further allege:

57. As a result of the foregoing, Plaintiff TERRIC LETANG was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints.

58. Plaintiff TERRIC LETANG was conscious of said confinement and did not consent to same.

59. The confinement of Plaintiff TERRIC LETANG was without probable cause and was not otherwise privileged.

60. As a result of the aforementioned conduct, Plaintiff TERRIC LETANG has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
MALICIOUS PROSECUTION UNDER NEW YORK STATE LAW**

61. Plaintiff TERRIC LETANG repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

62. On or about September 3, 2022, Defendant CITY OF NEW YORK, its agents, servants, and employees, including Defendants, LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, commenced a criminal proceeding against Plaintiff TERRIC LETANG, and falsely and maliciously, and without probable cause, charged Plaintiff with crimes.

63. Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, continued said proceeding despite the fact that they knew or should have known that Plaintiff TERRIC LETANG had not committed any crimes, that there were no exigent circumstances justifying a warrantless arrest, and that there was no need for the arrest and imprisonment of Plaintiff.

64. Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, were directly and actively involved in the initiation of criminal proceedings against Plaintiff TERRIC LETANG.

65. Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, lacked probable cause to initiate criminal proceedings against Plaintiff TERRIC LETANG.

66. Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, were motivated by actual malice in initiating criminal proceedings against Plaintiff TERRIC LETANG.

67. Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, misrepresented and falsified evidence before the District Attorney.

68. Defendants POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, did not make a complete and full statement of facts to the District Attorney.

69. Defendants, LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, withheld exculpatory evidence from the District Attorney.

70. Defendants, LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, were directly and actively involved in the continuation of criminal proceedings against Plaintiff TERRIC LETANG.

71. Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, lacked probable cause to continue criminal proceedings against Plaintiff TERRIC LETANG.

72. Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, were motivated by actual malice in continuing criminal proceedings against Plaintiff TERRIC LETANG.

73. That, notwithstanding the perjurious and fraudulent conduct of Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, the criminal proceedings were terminated in Plaintiff TERRIC LETANG's favor.

AS AND FOR A NINTH CAUSE OF ACTION
FOR NEGLIGENT HIRING AND RETENTION
UNDER NEW YORK STATE LAW

74. Plaintiff TERRIC LETANG repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

75. That Defendant CITY OF NEW YORK, was careless and reckless in hiring and retaining as and for its employees, Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, in that said Defendant employees lacked the experience, deportment and ability to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK failed to exercise due care and caution in its hiring

practices, and in particular, in hiring the defendant employees who lacked the mental capacity and the ability to function as employees of Defendant CITY OF NEW YORK; in that the Defendant employees lacked the maturity, sensibility and intelligence to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK knew of the lack of ability, experience, deportment and maturity of said Defendant employees when they hired them to be employees; and, in that Defendant CITY OF NEW YORK, its agents, servants and/or employees were otherwise careless, negligent and reckless.

76. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, to engage in the wrongful conduct heretofore alleged in this Complaint.

AS AND FOR A TENTH CAUSE OF ACTION FOR
NEGLIGENT TRAINING AND SUPERVISION
UNDER NEW YORK STATE LAW

77. Plaintiff TERRIC LETANG repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

The failure of Defendant CITY OF NEW YORK to adequately train, supervise, discipline or in any way control the behavior of Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, in the exercise of their employment functions, and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, is evidence of the reckless lack of cautious regard for the rights of the public including Plaintiff TERRIC LETANG. Further, the Defendants

exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

78. The failure of Defendant CITY OF NEW YORK, to train, supervise, discipline or in any other way control Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, in the exercise of their employment functions and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of New York, including Plaintiff TERRIC LETANG.

79. As a result of the foregoing, Plaintiff TERRIC LETANG is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual Defendants in the sum of Three Million Dollars (\$3,000,000.00).

WHEREFORE Plaintiff TERRIC LETANG demands judgment against Defendants LT. KHALIL A. BINSAFAR, and POLICE OFFICERS JOHN DOE 1-3, BADGE NUMBERS UNKNOWN, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: New York, New York
March 1, 2024

Jaime Santana, Jr.

By: JAIME SANTANA, JR.
SANTANA LAW FIRM, P.C.
Attorney for Plaintiff
TERRIC LETANG

590 Madison Avenue, 21st Floor
New York, New York 10022
(212) 448 0055

Defendant's address:

CITY OF NEW YORK
100 Church Street
New York, New York 10007

ATTORNEY'S VERIFICATION

I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing **SUMMONS and COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff is currently outside the County where your affirmant maintains his office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, New York
March 1, 2024

Jaime Santana, Jr.
JAIME SANTANA, JR ESQ.